

CHAPTER V.

Absent Defendants.

In cases where the Defendant is out of the jurisdiction, the proceedings are to be according to the following 22nd, 23rd, and 24th Orders :

1850.
XXII.

Absent
Defendants.

Service of Sub-
pœna out of
jurisdiction.

Time to be
limited for
appearance.

Service of copy
of Bill and
Order.

In default,
Order for ap-
pearance by
Plaintiff.

Where a Defendant in any suit is out of the jurisdiction of the Court.

1. The Court, upon application, supported by such evidence as shall satisfy the Court in what place or country such Defendant is or may probably be found, may order that the Subpœna *to appear to and answer, or to answer the Bill*, may be served on such Defendant in such place or country, or within such limits as the Court may think fit to direct.
2. Such Order is to limit a time (depending on the place or country within which the Subpœna is to be served) after service of the Subpœna, within which such Defendant is to appear to the Bill, and also a time within which such Defendant is to answer or demur; or obtain from the Court further time to make his defence to the Bill.
3. At the time when such Subpœna shall be served, the Plaintiff is also to cause such Defendant to be served with a copy of the Bill and a copy of the Order, giving the Plaintiff leave to serve the Subpœna.
4. And if, upon the expiration of the time for appearing, it appears to the satisfaction of the Court that such Defendant was duly served with the Subpœna, and with a copy of the Bill and a copy of the Order, the Court may, upon the application of the Plaintiff, order an appearance to be entered for such Defendant.

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